



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: UDC-22-00017 / West Edge Zoning Map Amendment
Date: May 18, 2022

Background:

The item for consideration is a **Zoning Map Amendment**. This is approved by **Ordinance**.

This zone change application proposes changing the zoning of the West Edge area from MUB, MUR, LI, and CB to MUB with the UU Overlay. Planning efforts in the West Edge District have been underway for nearly a decade in the City of Cheyenne. One of the most consistent and critical components of these planning efforts has been the recommendation to rezone the area. The West Edge plans of both 2014 and 2016 note that the area should consider the Mixed-Use Business Emphasis or Mixed-Use Residential Emphasis zones with special characteristics. Through extensive outreach and comprehensive internal efforts, the Planning and Development Department has crafted the Urban Use overlay district to fulfill the West Edge vision. Rezoning the properties included in the West Edge district to MUB with the UU Overlay will permit a wide variety of uses with flexible development standards to promote redevelopment and reinvestment in the area. This is a City-initiated zoning map amendment initiated pursuant to UDC 2.2.1.b.2.

The proposed Governing Body review schedule is as follows:

- Introduction and First Reading 05/23/2022
- Public Services Committee 06/07/2022
- Second Reading 06/13/2022
- Public Services Committee 06/22/2022
- Third and Final Reading 06/27/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 16, 2022 meeting and recommended approval of the MUB zoning by a vote of 3-0 and approval of the UU Overlay zoning by a vote of 2-1.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report
3. Zoning Map Amendment Map

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB, MUR, LI, AND CB TO MUB WITH THE UU OVERLAY FOR LAND LOCATED IN THE WEST EDGE DISTRICT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne has initiated a zoning map amendment (“zone change”) for said properties in accordance with Section 2.2.1.b.2, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That all property owners within the zone change boundary and within 300 feet of the zone change boundary were notified through a mailed notice on April 26, 2022 in accordance with Section 2.2.1.c.2.b.3 of the UDC.

Section 3. That on May 11, 2022, the City of Cheyenne Planning and Development Staff held a public meeting for all property owners notified subject to Section 2.2.1.c.2.b.3 of the UDC to educate the public on the Zoning Map Amendment and obtain public comment.

Section 4. That on May 16, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 5. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 6. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as all of Blocks 162, 163, 164, 209, 210, 211, 212, 222, 223, 224, 225, 226, 227, 271, 272, 273, 274, 275, 284, 285, 286, 287, 333, 334, 335, 336, 347, 348, 349, 350, 395, 396, 397, 398, 399, 408, 409, 410, 411, 412, 413, and 414 and all adjacent rights-of-way vacated therein Original City, Cheyenne, Wyoming and Lot 3 and 4, Block 288, Original City, Cheyenne, Wyoming and all off the Forestry Park Subdivision, and all of the Westby Edge Subdivision, and all of the Westland Holdings Addition Subdivision, and all of Haller Addition Subdivision, Cheyenne, Laramie County, Wyoming is hereby changed to MUB Mixed Use Business Emphasis with the Urban Use Overlay District.

Section 7. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 8. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 9. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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STAFF REPORT

RECOMMENDED MOTION:

Move to **approve** the rezoning of the West Edge District to MUB Mixed Use Business Emphasis with the Urban Use Overlay District as shown in the attached zone change map with property descriptions, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- West Edge Visionary Blueprint (2014)
- West Edge Area Wide Plan (2016)
- Reed Avenue Rail Corridor Plan (2018)

BACKGROUND:

This zone change application proposes changing the zoning of the West Edge area from MUB, MUR, LI, and CB to MUB with the UU Overlay. Planning efforts in the West Edge District have been underway for nearly a decade in the City of Cheyenne. One of the most consistent and critical components of these planning efforts has been the recommendation to rezone the area. The West Edge plans of both 2014 and 2016 note that the area should consider the Mixed-Use Business Emphasis or Mixed-Use Residential Emphasis zones with special characteristics. Through extensive outreach and comprehensive internal efforts, the Planning and Development Department has crafted the Urban Use overlay district to fulfill the West Edge vision. Rezoning the properties included in the West Edge district to MUB with the UU Overlay will permit a wide variety of uses with flexible development standards to promote redevelopment and reinvestment in the area. This is a City-initiated zoning map amendment initiated pursuant to UDC 2.2.1.b.2.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Use Employment, Mixed-Use Commercial, Mixed-Use Residential Open Space and Parks, and Public	MUB, MUR, LI, and CB	Various
North	Urban Residential, Mixed-Use Commercial, Industrial, and Public	MUB and MR	Various
South	Industrial and Public	LI	Various
East	Mixed-Use Commercial, Open Space and Parks, and Central Business District	P, MUB, and CBD	Various
West	Mixed-Use Commercial and Open Space and Parks.	LI and P	Various

Future Land Use Categories

Mixed-Use Commercial

The Mixed-Use Commercial Emphasis category encompasses existing and future developments, many of which align with activity centers. This category includes a wide variety of land uses and activities, focused primarily on commercial activities, but also including other employment, public, and residential uses. While many existing Mixed-Use Commercial Emphasis areas do not currently integrate residential uses, as they redevelop and change over time, residential units may be incorporated to add more activity to these areas.

Mixed-Use Residential

The Mixed-Use Residential Emphasis category promotes self-supporting neighborhoods primarily containing a mix of housing densities with complementary Neighborhood Business Centers. This category includes existing and future neighborhoods. Many of the newer Mixed-Use Residential Emphasis areas in the Cheyenne Area have focused on development of the residential components first, with development the non-residential and other amenities lagging somewhat behind due to market demand. These non-residential elements and other amenities are important next-steps for enhancing these newer neighborhoods as they become more established.

Mixed-Use Employment

The Mixed-Use Employment Campus category is intended to include a variety of uses, with a primary focus on employment designed in a business campus setting. Many of the Mixed-Use Employment Campuses in the community (e.g. portions of Swan Ranch) are in the early stages of development or are established (e.g. North Range Business Park, and Cheyenne Business Parkway), but still have many sites available.

Open Space and Parks

The Parks and Open Space category includes existing and planned future parks and open space areas.

Public

The Public and Quasi-Public category encompasses areas related to governmental and other community-based services and activities, like educational facilities and other institutions. Many of these areas are already developed, and future Public and Quasi-Public areas will need to be coordinated with the City, County, and their partner organizations and service providers as necessary.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The proposed zoning map amendment is consistent with the principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

- *Policy 1.1.B: Flexibility to Respond to Market Demands.*
The MUB District with the UU Overlay will provide flexible zoning regulations to promote infill development, adaptive reuse, and redevelopment of an important area in the City of Cheyenne. The flexibility should incentivize the market to consider developing in the West Edge.
- *Policy 1.4.A: Infill Opportunities*
The MUB District with the UU Overlay provides the opportunity for infill development through regulations that promote flexibility, but also consider the character of the area in which they are located.
- *Policy 1.4.C: Downtown Revitalization and Mix of Uses*
As the Urban Use Overlay is applied to the West Edge, it is anticipated to revitalize the area and further mix uses in the area. Staff anticipates the development of the West Edge will greatly benefit the downtown as a whole.
- *Policy 1.4.D: Infill and Revitalization Incentives*
A rezoning to MUB with the UU Overlay achieves several items that are mentioned in this policy; such as reducing parking minimums, providing flexible dimensional standards, promoting higher densities than currently permitted, and providing flexibility in design requirements for utilizing existing buildings.
- *Policy 2.3.A: Mix of Housing Types*
Much of the West Edge District is currently zoned LI, which does not permit residential uses. The rezoning to the MUB District will allow a variety of housing types to be located within the district.
- *Policy 3.2.B: Active Uses in the Street Level*
The Urban Use Overlay promotes active uses on the street level by permitting various street furnishings and projections into the Right of Way.
- *Principle 4.3: The Cheyenne Area will build a safe, multimodal transportation system that consists of streets, sidewalks, bicycle facilities, and transit*
The Urban Use Overlay promotes bicycle infrastructure and pedestrian amenities through increased bicycle parking and an active pedestrian zone.
- *Policy 5.1.A: Historic Building Restoration*
The Urban Use Overlay promotes building reuse and restoration with flexible site design and building placement requirements for utilizing existing buildings.

Furthermore, the West Edge has been subject to several Planning efforts (2014, 2016, and 2018) that have recommended the area be transformed into a mixed-use, pedestrian-oriented District that celebrates the industrial history of the district. The MUB zone with the UU overlay allows this style of development.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

Again, the entire area of the West Edge has been identified as an area for redevelopment and infill development to create an urban, pedestrian, and mixed-use atmosphere. The plans have led several properties to rezone individually in anticipation of future redevelopment. The legislative zoning initiated by the City of Cheyenne will ensure the entirety of the district is rezoned at the same time, delivering complementary development patterns. Furthermore, the Urban Use Overlay will provide a harmonious step down from the Central Business District into the surrounding neighborhoods zoned MUB and MR.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

Much of the West Edge District west of Snyder Avenue contains detached single-family housing units, which are not permitted in the existing LI Zone District. This has led the uses to be considered non-conforming uses, requiring a conditional use for expansion. A rezoning to MUB with the UU Overlay will be more conducive to residential expansion and additions with the existing homes. In addition to this, much of the redevelopment interest falls east of Snyder Avenue. The UU overlay will allow new development opportunities to utilize existing buildings for new development. The UU will also not require parking minimums. The existing site and block layout is not conducive towards individual sites meeting parking minimums; therefore, the flexibility provided by the UU District will allow creative redevelopment options without having to consider parking. Many of the existing businesses in the West Edge area are considered limited industrial, which is a permitted use in the MUB District, or moderate industrial, which is a conditional use in the MUB District, meaning the rezoning is not anticipated to have a significant impact on the existing businesses.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The West Edge District is within the Original City Plat, meaning it adheres to a strict grid system. With this, many of the subdivisions in the area often result in lot consolidation or clarification. The subdivision standards applicable to these sites often pertain to building detached sidewalks and other minor improvements to the right-of-way. Staff does not anticipate redeveloping properties having difficulties in meeting these standards.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The Intent of the MUB District is for a diverse mix of Residential, Retail, Service, Employment and Civic uses integrated into a walkable compact development pattern while the intent of the UU Overlay is intended for Urban and Infill Development. The location of the West Edge is conducive to these intent statements as it has compact, Original City blocks, opportunities for building reuse and infill development, and can act as a natural extension of the downtown. In addition, staff is confident new development will be able to meet the development design objectives found in UDC 6.7 or meet the methods found in the UU Overlay as alternative compliance.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The MUB District with the UU Overlay provides ample flexibility for the properties located within the West Edge District to meet all applicable standards. The UU Overlay was crafted with flexibility specifically considering the West Edge District; therefore, staff is confident all new development in the area will meet the required standards of the UDC.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No comments were received from other reviewing bodies during the scheduled review period.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne
- West Edge Visionary Blueprint (2014)
- West Edge Area Wide Plan (2016)
- Reed Avenue Rail Master Plan (2018)

Conformance with these plans is covered by review criterion 1; however, it is noteworthy that this zoning map amendment is one of the primary implementation steps of all West Edge Area plans.

The proposed zone change is also in compliance with the future land use map in several regards. The existing industrial businesses coalesced with the moderate industrial as a conditional use and the limited industrial as a use by-right in the Urban Use District accomplishes the intent of the mixed-use employment category, while the mix of residential and commercial uses will fulfill the mixed use commercial and mixed-use residential purposes of interspersing residential units with ground floor commercial active uses. The Parks and Open Space designations merely designate the Ames Pumphouse as a future recreation opportunity with the planned Greenway and the Public designation recognizes the State-owned property within the area. Due to the aforementioned reasons, staff believes the zone change is largely in compliance with the future land use plan.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MUB Zone with the UU Overlay Zone is appropriate based on the conditions of the subject properties, the recommendations of the West Edge area plans, and the investment the rezoning will result in for the City of Cheyenne.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

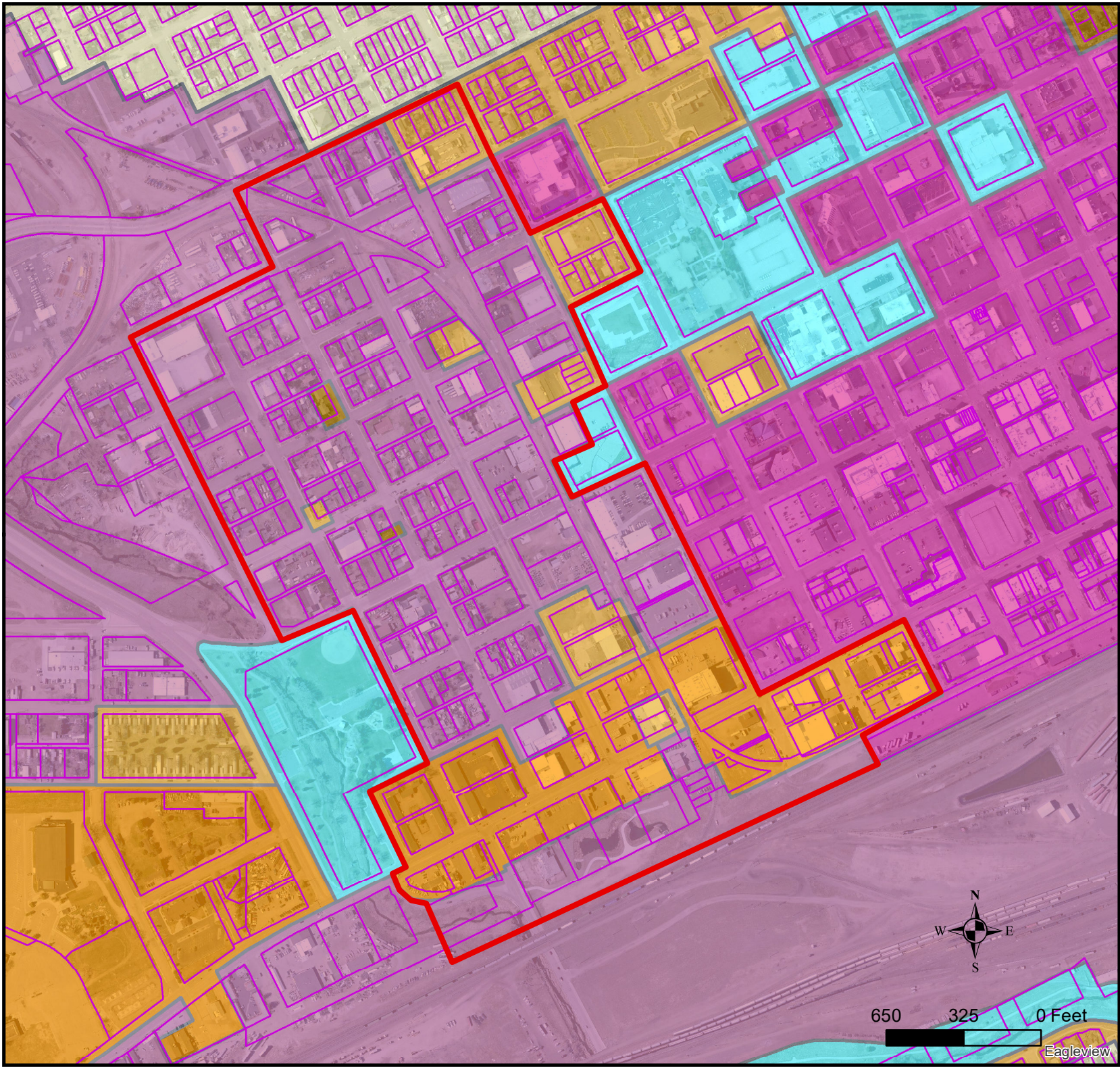
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB, MUR, LI, and CB to MUB with the UU Overlay.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Zone Change Map



Current Zoning

- Legend**
- MR / Medium Denisty Residential
 - MUR / Mixed Use Residential Emphasis
 - CBD / Central Business District
 - CB / Community Business
 - MUB / Mixed Use Business Emphasis
 - LI / Light Industrial
 - P / Public
-  Zone Change Boundaries

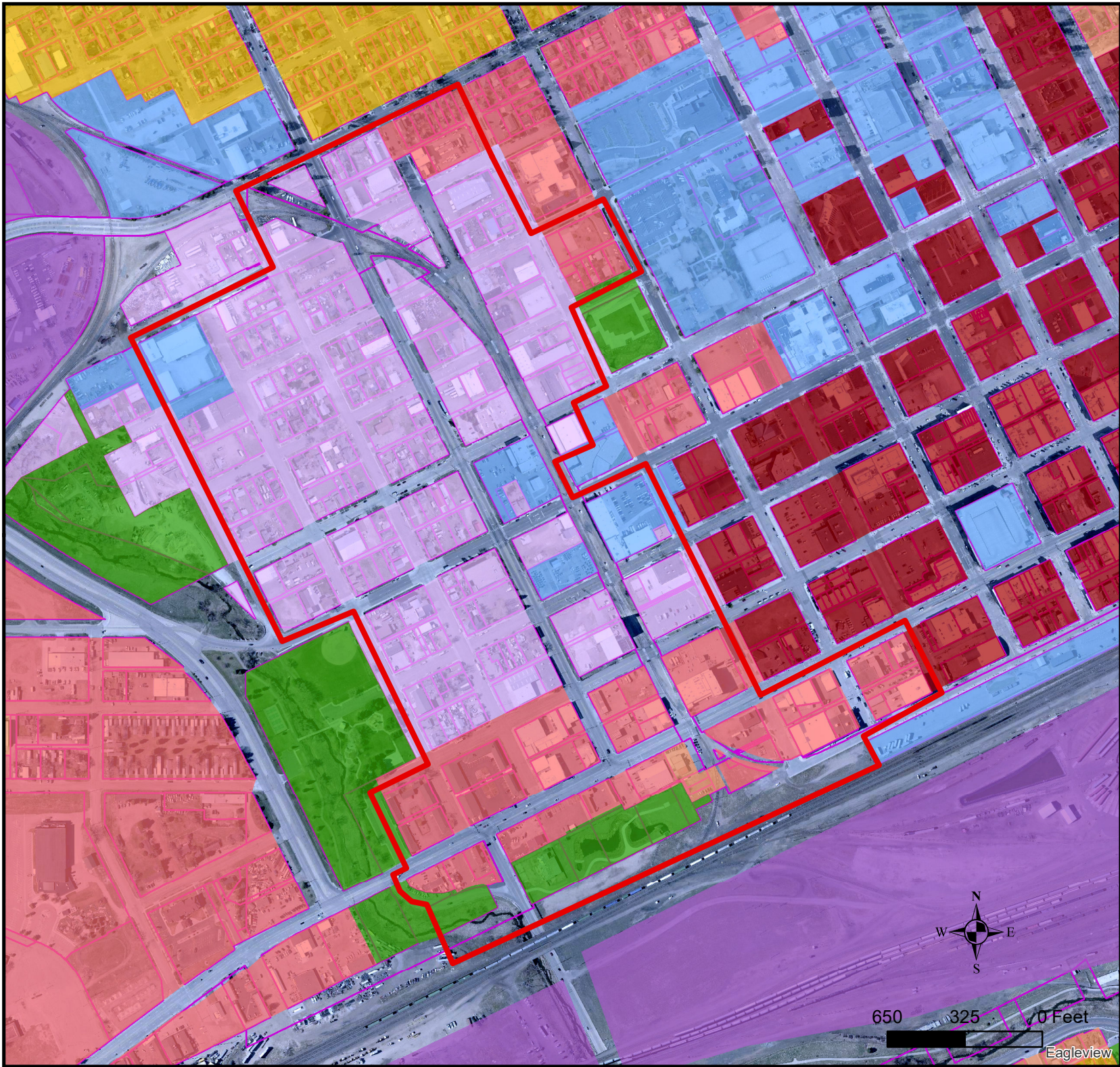


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Eagleview



Future Land Use

Legend

- Urban Residential
 - Mixed-Use Residential
 - Mixed-Use Commercial
 - Mixed-Use Employment
 - Industrial
 - Central Business District
 - Public and Quasi-Public
 - Open Space and Parks
- Zone Change Boundaries



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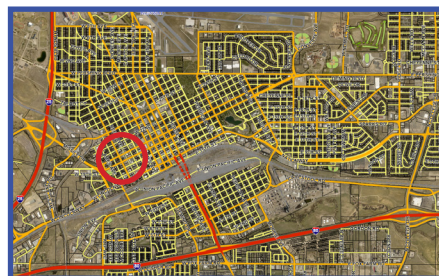
Eagleview

User Name: markc

Date: 5/16/2022



Vicinity Map



City of Cheyenne Zoning Map Amendment



Information:

Address

Various

Legal Description

See Page II

Current Zone

MUB (Mixed-Use Business Emphasis), MUR (Mixed-Use Residential Emphasis), LI (Light Industrial), and CB (Community Business)

Proposed Zone

MUB (Mixed-Use Business Emphasis) with the UU (Urban Use) Overlay

Site Area



Approximately 116 Acres

Scale

1:550

Produced by the City of Cheyenne Planning and Development Department on May 9, 2022. This is a City-initiated Zoning Map Amendment. This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program

Legal Description:

All of Blocks 162, 163, 164, 209, 210, 211, 212, 222, 223, 224, 225, 226, 227, 271, 272, 273, 274, 275, 284, 285, 286, 287, 333, 334, 335, 336, 347, 348, 349, 350, 395, 396, 397, 398, 399, 408, 409, 410, 411, 412, 413, and 414 and all adjacent rights-of-way vacated therein Original City, Cheyenne, Wyoming.

and,

Lots 3 and 4 Block 288 Original City, Cheyenne Wyoming

and,

All of the Forestry Park Subdivision

and,

All of the Westby Edge Subdivision

and,

All of the Westland Holdings Addition Subdivision

and,

All of Haller Addition Subdivision.